



ROSECREST GROUP LTD

ROSECREST GROUP LTD TERMS OF ENGAGEMENT FOR SERVICES

1. Introduction and Basis of Engagement

Rosecrest Group Ltd is a firm regulated by the Royal Institution of Chartered Surveyors (RICS). The Responsible Principal is Ms. Venesha Rose, AssocRICS.

This document sets out the contractual terms upon which the Surveyor will advise the Client using a written report as to their opinion of the visible condition and state of repair of the property.

The report does not guarantee that the property is free from defects other than those specifically identified within it. The inspection and report will be undertaken by a suitably qualified and accredited building surveyor exercising reasonable skill, care, and professional diligence.

The report is prepared solely for the benefit of the named Client. No liability is accepted to any third party. The report must not be disclosed, in whole or in part, to any other party without the Surveyor's express written consent. If required, the report may be reissued to additional parties subject to an administration fee. No third party should rely upon the report or draw inferences beyond the scope of the original instruction.

2. Client Instructions and Concerns

The Client must provide instructions in writing prior to inspection, including any specific concerns.

The Surveyor will consider these concerns where they fall within the scope of the selected survey type. Matters outside the agreed scope will not be addressed unless separately instructed and paid for.

3. Content of the Report

The Surveyor will report on the property in accordance with the Client's written instructions and the scope of the survey type selected.

Following inspection, a written report will be provided. Clients are advised to read the report in full.

Any queries must be submitted by email.

Post-Report Queries

Following delivery, the Client may submit one consolidated list of reasonable clarification questions relating directly to the contents of the report.

The Surveyor will respond by email at their discretion and within a reasonable timeframe.

Requests for:

- multiple rounds of follow-up questions
- telephone consultations
- interpretation of third-party reports
- advice on renegotiation or pricing
- review of contractor quotations
- further investigation of specific defects

are not included within the original survey fee and may be subject to an additional professional fee.

4. Professional Integrity

We are committed to independent and objective reporting. We will not alter professional opinions due to external pressure, including threats of negative reviews or chargebacks.

5. Professional Standards & Surveyor Allocation

Rosecrest Group Ltd provides a range of surveying and inspection services, some of which are RICS-regulated services and some of which are non-RICS or panel-specific services. Surveyors are allocated at our discretion according to the nature of the instruction, the required competence, applicable accreditation, and any client or panel requirements.

Where the instruction is a RICS Home Survey, the service will be undertaken by an appropriately qualified RICS member with the skills, knowledge, and experience required for that service.

Where the instruction is a non-RICS survey, panel survey, or third-party template instruction, the service may be undertaken by another suitably qualified professional, including a member of CIOB, CABE, RPSA, or another recognised professional body, using the format or template applicable to that instruction.

The confirmation of instruction, booking communication, or report format will identify the service type instructed.

6. Report Turnaround Times

Reports are delivered within:

- Level 1: 5 working days
- Level 2: 5 working days
- Level 3: 7 working days
- CPR 35 / Disrepair: 10 working days
- Damp & Mould: 7 working days
- Stock Condition Surveys: 10 working days
- Party Wall Awards: 14 working days (subject to complexity)

Timeframes begin from the day after the inspection.

7. Report Delivery Format

All reports are issued in digital PDF format only via email.

Delivery is deemed complete upon sending. We are not responsible for email failures outside our control.

Printed copies are not provided as standard and may incur a fee.

8. Property Purchase Decisions

The report is intended to assist decision-making only.

The decision to proceed, renegotiate, or withdraw from a purchase is the Client's responsibility.

Withdrawal from a transaction does not entitle the Client to a refund.

9. Validity of the Report

The report reflects the condition of the property at the time of inspection only.

It should not be relied upon after three (3) months without re-inspection.

10. Access, Attendance & Evidence

Rosecrest Group Ltd will arrange access to the property with the relevant agent, vendor, or occupier following instruction and payment.

The Client agrees to provide accurate and complete contact details for the relevant parties and to cooperate where required to facilitate access.

If access cannot be gained at the agreed time due to matters outside the control of Rosecrest Group Ltd, including but not limited to unavailable keys, incorrect access details, key safe failure, no one present to provide access, vendor or tenant refusal, or occupancy restrictions, the inspection will be deemed abortive.

In such circumstances, the full inspection fee remains payable, and any re-attendance will be subject to an additional charge.

Where areas of the property are locked, obstructed, unsafe, or otherwise inaccessible, the Surveyor will record such limitations and may take photographic and/or video evidence where appropriate.

11. Key Collection Policy

If key collection is required:

- Within 1 mile of the property: no additional charge
- Beyond 1 mile: £5.50 per mile (Maximum £50)

Failed access due to incorrect or missing keys will result in loss of fee and rebooking charges.

12. Scope of Survey Types

Survey scope is limited to the level selected.

Clients cannot expect higher-level detail from lower-level surveys.

13. Client Responsibility for Survey Selection

We will explain the nature and scope of the survey options we offer where appropriate and, if asked, will assist the Client in understanding the differences between them. The final choice of service rests with the Client.

If the Client chooses a lower-level, more limited, or lower-cost service after that explanation, Rosecrest Group Ltd's responsibility is limited to carrying out the service actually instructed with reasonable care and skill. We shall not be liable for failing to provide advice, investigations, costings, valuations, contractor review, negotiations, or other detail that falls outside the scope of the service selected, unless separately agreed in writing and subject to an additional fee.

13a. Important Limitation of Liability (Scope and Third-Party Reports)

The report reflects the condition of the property as seen and inspected at the time of the survey only.

It does not and cannot comment on past conditions, historic issues, or future changes to the property.

The Surveyor will not comment on third-party reports, findings, or opinions and accepts no liability for:

- matters outside the scope of the inspection
- defects that were not visible or reasonably accessible at the time of inspection
- reliance placed upon third-party reports, contractor opinions, or external assessments

The report should be read as a standalone professional opinion based solely on the inspection carried out and the scope of the agreed service.

14. Limitations of Inspection

The inspection is visual and non-invasive in nature.

The Surveyor will not lift carpets, floor coverings, or move heavy furniture, nor will they open up the structure of the building or carry out destructive investigations.

Inspection of roof spaces, sub-floor voids, and other concealed areas will only be undertaken where it is safe and reasonably accessible. Ladder access is typically limited to approximately 3 metres.

The Surveyor will not comment on parts of the property that are not visible, accessible, or reasonably inspectable at the time of the survey.

15. Services Not Included

Unless separately agreed in writing and subject to an additional fee, the following services are excluded from all survey types:

- cost estimates or detailed remedial specifications
- invasive or destructive investigations
- specialist testing (including but not limited to damp testing, drainage surveys, or structural analysis)
- structural calculations
- guarantees or warranties
- legal title advice
- testing of services, appliances, or installations
- ongoing monitoring or post-inspection investigations

Clients should obtain such advice from appropriately qualified specialists where required.

16. Payment of Fees

Full payment is required before booking.

Additional services are charged separately.

17. Cancellation

The Client may cancel at any time before the inspection. Where the Client is a consumer and the contract is concluded at a distance or off-premises, the Client may have a statutory right to cancel within 14 days of entering into the contract.

If the Client requests that Rosecrest Group Ltd begin the services within those 14 days, the Client expressly requests immediate performance of the contract. The Client acknowledges that, once the contracted survey service has been fully performed, any statutory right to cancel will be lost.

If the Client cancels after the service has begun, but before it has been fully performed, Rosecrest Group Ltd may charge a proportionate amount for the work actually carried out up to the time of cancellation.

For this clause, the contracted survey service is fully performed when the written report has been issued to the Client by email, unless expressly agreed otherwise in writing.

Where no statutory cancellation right applies, or where the service has not yet started, our standard cancellation terms are usually as follows: more than 14 days before inspection, full refund; between 7 and 14 days before inspection, 50% refund; and within 7 days of inspection, no refund. At our discretion, we may instead offer to reschedule the inspection or transfer the booking to another property in the vicinity.

Nothing in this clause affects any statutory rights which cannot lawfully be excluded or restricted.

20. Environmental and Legal Matters

Clients must rely on solicitors for legal, planning, and environmental matters.

21. Hazardous Materials

We do not test for asbestos or hazardous substances.

22. Ground Conditions

We do not comment on subsidence or contamination unless visually apparent.

23. Consents, Approvals and Searches

It is assumed that all planning and building regulation approvals are in place. Verification is the responsibility of the Client's solicitor.

24. Additional Professional Services

Additional services outside the scope may be provided for a fee.

This includes:

- cost estimates
- solicitor discussions
- re-inspections

- technical advice

For CPR 35 / Expert Witness:

- additional document review
- supplementary reports
- joint statements
- solicitor conferences
- court attendance

All charged at agreed rates.

25. Court Attendance and Cancellation

Court attendance is charged at a daily rate.

Cancellation terms:

- 5+ days: no charge
- 2–5 days: 50%
- <2 days: 100%

Adjournments remain chargeable.

Travel and accommodation costs apply.

26. Complaints Handling

Rosecrest Group Ltd operates a formal Complaints Handling Procedure in accordance with RICS requirements.

A copy of our Complaints Handling Procedure is available on our website and can also be provided on request. The procedure includes details of the applicable Alternative Dispute Resolution route.

27. Refund Rights

Complaints, whether upheld or not, do not automatically entitle the Client to a refund.

Refunds will only be considered where there is clear evidence of negligence or a material breach of contract by Rosecrest Group Ltd.

28. Limitation of Liability

To the fullest extent permitted by law, the liability of Rosecrest Group Ltd for any claim arising out of or in connection with the services provided shall be limited to £500,000 or the level of Professional Indemnity Insurance held by the firm at the time the claim arises, whichever is the greater.

This limitation applies to all claims, whether arising in contract, negligence, breach of statutory duty, or otherwise.

Rosecrest Group Ltd shall not be liable for:

- any indirect or consequential losses
- loss of profit, revenue, or business opportunity
- losses arising from a failed or withdrawn property transaction
- reliance placed upon the report beyond its stated scope or purpose

Nothing in these Terms shall exclude or limit liability for death or personal injury caused by negligence, fraud, or any other liability which cannot legally be excluded.

29. Force Majeure

Rosecrest Group Ltd shall not be liable for any delay or failure to perform its obligations where such delay or failure results from events beyond its reasonable control, including but not limited to extreme weather, illness, accident, strikes, transport disruption, IT or communication failures, or acts of government.

In such circumstances, delivery times may be extended or the contract suspended without liability for refunds or damages.

30. Applicability of Terms

These Terms of Engagement apply in full regardless of whether the Client has engaged our services directly or via an introducer, partner, estate agent, or any other third party.

By proceeding with the instruction, the Client agrees that these Terms take precedence over any conflicting terms or assurances provided by third parties.

31. Governing Law & Jurisdiction

These Terms are governed by the laws of England and Wales. Any disputes shall be subject to the exclusive jurisdiction of the courts of England and Wales.

32. Severability

If any provision of these Terms is found to be invalid, illegal, or unenforceable, the remaining provisions shall continue in full force and effect.

33. Whole Agreement

These Terms of Engagement constitute the entire agreement between the parties and supersede all prior discussions, representations, or understandings, whether written or oral.

34. Client Declaration & Acceptance

By proceeding with the instruction, the Client confirms that they have read, understood, and agreed to be bound by these Terms of Engagement.

The Client acknowledges that the report is produced solely for their benefit and may not be relied upon by any third party without prior written consent.

Client Name: _____

Property Address: _____

Date: _____

Signature: _____

By proceeding, the Client confirms acceptance of these Terms.